

IN THE EMPLOYMENT TRIBUNAL

Claimant: Stanley Wong
Respondent: J.P. Morgan Securities PLC

GROUNDS OF CLAIM

1. Introduction

1.1 The Claimant, a market risk specialist who is on the autism spectrum, brings a claim for **victimisation** contrary to **sections 27 and 39(3)(a) of the Equality Act 2010** arising from his application for the role of Market Risk FRTB – Implementation & Analytics – Senior Associate / Vice President (Job Number: 210718502) ("the Role") in March–April 2026.

1.2 The central contention is that the Respondent assessed the Claimant's CV as meriting progression, then—during its own screening call—the recruiter stated the Respondent could not progress the application because the Claimant had been dismissed by his previous employer. The Claimant challenged this, asking the recruiter to double-check whether she really could not progress him, and disclosed a live Employment Tribunal claim for disability discrimination against his former employer (the protected act), stating that he had done nothing wrong. The call then continued, with the recruiter proceeding to standard screening questions. The Claimant was subsequently excluded from interview without any documented reason. The process moved to offer stage with other candidates while the Claimant's application was described as "on hold"—a rejection in substance, delivered in soft language. The job advert remained live. No formal rejection has ever been issued. The logical inference is that the protected act was the reason for the exclusion.

2. Who is involved

2.1 I am a finance professional specialising in market risk.

2.2 The Respondent is J.P. Morgan Securities plc, whose London office is at 25 Bank Street, Canary Wharf, London E14 5JP.

2.3 At all relevant times, Ms Monika Widz (Senior Recruitment Partner) acted on JPM's behalf in the recruitment process. Her knowledge and actions are treated in law as JPM's knowledge and actions.

3. Background

3.1 I was dismissed by my previous employer, Phoenix Group Management Services Limited.

3.2 I am challenging that dismissal in an Employment Tribunal claim for **disability discrimination because of my autism** (case number 6012467/2024). That claim is a protected act under the Equality Act 2010.

3.3 The Role was advertised by JPM. I applied on 5 March 2026 and received confirmation of receipt the same day. The Role is a senior position. As of 5 May 2026, the advert was still live and accepting applications.

4. What happened – the key events

CV review and invitation to screening

4.1 On 12 March 2026, JPM emailed me stating that it had reviewed my application and that it had 'sparked our team's interest.' A screening call was arranged as a result. I was therefore assessed as meriting further progression before any disclosure had taken place.

4.2 In my email reply the same day, I proposed times for the screening call and stated the following adjustment to improve my performance: "Clear objective definition: I perform best when the intended focus or success criteria of a question are explicit."

The screening call – 13 March 2026

4.3 During the call, Ms Widz asked me directly why I had left my previous employment. I told her I had been dismissed.

4.4 Immediately, Ms Widz stated that JPM could not progress my application because of that dismissal. At that point, I had not yet mentioned the Tribunal claim.

4.5 In response to her negative reaction, I explained that my dismissal was being challenged in an Employment Tribunal for disability discrimination (case number 6012467/2024) and that I had not done anything wrong. I asked her to double-check whether she really could not progress my application.

4.6 The call continued. Ms Widz did not repeat her earlier statement that JPM could not progress my application. She proceeded with the screening, including questions about my motivation for the role and my salary expectations.

4.7 By the end of the call, JPM (through Ms Widz) knew both about the dismissal and about my open disability discrimination claim.

Exclusion from interview

4.8 On 23 March 2026, Ms Widz telephoned me. She told me that four of six screened candidates had been selected to proceed to interview. I was not among them. She described my application as "on hold." She provided no documented or substantive reason for my exclusion from the interview stage. The Respondent has never provided me with a formal rejection. My candidate profile on JPM's application portal continues to show my status as "under consideration."

4.9 The only material new information introduced between JPM's decision to progress me (on or before 12 March 2026) and my exclusion from the interview stage (on 23 March 2026) was what I disclosed during the screening call: my dismissal by Phoenix Group Management Services Limited, and my live Employment Tribunal claim for disability discrimination against that employer (the protected act).

Later communications

4.10 I followed up by email several times. I:

- Asked for the application to be progressed;
- Raised the possibility of unconscious bias because of my dismissal and Tribunal claim;
- Asked Ms Widz to confirm in writing that the hiring team saw my CV, requested a screening call, learned about my dismissal, and then did not progress me.

4.11 On 21 April 2026, Ms Widz replied by email. She stated: *"I have called you some time ago already – the team decided to move forward with another candidates, we are now on the offering stage."* By referencing the earlier call of 23 March 2026, she treated that call as the moment the decision had been communicated. The email confirms that the team had moved forward with other candidates and that the process had reached offer stage. The Claimant was not among those progressed. No reason for the decision was provided.

4.12 On 23 April 2026, Ms Widz telephoned me again. She confirmed that the FRTB role was at offer stage (as she had stated in her email of 21 April 2026). She also told me that my enquiries about model risk roles would not be progressing, as the relevant hiring team had reviewed my CV and decided not to invite me for interview. I asked her about the decision-making process for the FRTB role. She indicated that the hiring team had seen my CV, requested the screening call, and then—after receiving the screening results—my application was not progressed further.

4.13 As of 5 May 2026, I have received no further communication from JPM. My application status remains "under consideration" on the portal. No formal rejection has

been issued. The job advert remained live throughout this period, even after the process was described as being at offer stage.

5. Legal claim – Victimisation

Protected acts

5.1 My live Employment Tribunal claim against Phoenix Group Management Services Limited (case 6012467/2024) is a protected act under **section 27(2)(a)** of the Equality Act 2010.

5.2 Additionally, when I told Ms Widz during the screening call that **I didn't do anything wrong** in the context of disclosing the Tribunal claim, I was making an allegation that Phoenix Group Management Services Limited had contravened the Equality Act. That statement is independently a protected act under **section 27(2)(d)**.

5.3 Both protected acts were disclosed to Ms Widz, who was acting as JPM's agent. JPM is treated as having full knowledge of them from that moment.

Detriment

5.4 JPM did not invite me to interview for the Role. Other candidates advanced to that stage. I was excluded from meaningful progression in the process. That is a material disadvantage – a **detriment** under **section 27(1)(b)**. The Respondent's conduct was therefore unlawful victimisation contrary to **sections 39(3)(a) and 27** of the Equality Act 2010.

Causation – why the burden of proof shifts to JPM

5.5 The following facts, taken together, shift the burden of proof to the Respondent under **section 136** of the Equality Act 2010:

- JPM reviewed my CV and made an **affirmative decision** to progress me to screening. My CV was good enough for a senior role.
- The only material new information that appeared after that decision was what I disclosed during screening – the dismissal and the protected acts.
- The disclosure of the protected act was **compelled by JPM's own process**: the recruiter asked about my departure, reacted adversely to the dismissal, and then continued with the screening only after I asked her to double-check and disclosed the protected act.
- The screening results, compiled by Ms Widz with full knowledge of the protected acts, were passed to the hiring team. The team then excluded me **without any documented reason**.

- Despite my repeated requests, JPM has provided **no substantive written reason** for my exclusion. The absence of a legitimate reason is consistent with the true reason being one it cannot state.
- Ms Widz's email of 21 April 2026 confirms that she treated the 23 March 2026 call as the moment the decision was communicated. The decision was that the team had moved forward with other candidates. The "on hold" label was not a genuine status. It was a rejection in substance, delivered in soft language.
- The job advert **remained live** even after I was told the process was at offer stage. This is inconsistent with a straightforward, merit-based selection of other candidates.

5.6 In light of these facts, JPM must prove that my protected acts played **no part whatsoever** in the decision to exclude me from interview. I say it cannot do so.

6. Remedy Sought

6.1 A **declaration** that the Respondent has contravened sections 39(3)(a) and 27 of the Equality Act 2010.

6.2 **Compensation** for injury to feelings, including aggravated damages.

6.3 **Compensation** for financial loss, including loss of the opportunity to be appointed to the Role (assessed on a loss of a chance basis).

6.4 **Interest** on the above sums.

6.5 Such further or other relief as the Tribunal thinks just.